IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Special Bench)

Item No.-516

CP (CAA) No. 127/230/232/ND/2021

IN THE MATTER OF:
Amrit Gold Intrade Pvt. Ltd.& Anr. And Spice Infotech Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 28.04.2022

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Adv Rishabh Sachdeva & PCA Abhishek Nahta
For the Respondent	: Swechcha Mishra for RD, Hemlata Rawat Counsel for OL

ORDER

Heard the submissions made by the Counsel for the Petitioner as well as Proxy Counsel for RD. Proxy Counsel for RD has submitted that so far, reply to the query letter has not been received as yet from the Petitioner. However, Counsel for Petitioner has submitted that they have already replied to the query letter, therefore, the Petitioner's Counsel is directed to provide a copy of the reply furnished by them to the Counsel for RD to enable her to take up the matter with the office of RD and expedite filing of reply at their end.

RD may treat this opportunity as last chance and ensure filing their report without any fail before the next date of hearing. Counsel for the OL has submitted that he has filed the report, however, the same is not traceable on the e-portal of the Tribunal. Therefore, Counsel for OL is directed to approach the Registry and attend the objections, if any and get the report placed on record on the e-portal of the Tribunal before the next date of hearing.

No one is present on behalf of Income Tax Department at the time of virtual hearing of the matter despite service of the notice, therefore, the Petitioner is directed to file Income Tax Returns for all 4 companies for the last 3 years accompanied by Transferee Company's undertaking that they will pay the tax dues, if any claimed as per the provisions of law in force before the next date of hearing. Post this matter on **31.05.2022.**

Sd/-

(HEMANT KUMAR SARANGI)
MEMBER (T)

Sd/-

(P.S.N PRASAD)
MEMBER (J)

Khushboo